

26CV01232 Carpinteria Group LLC vs the City of Carpinteria

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-06-10

Motion: Demurrer

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Tentative Ruling: Carpinteria Group LLC vs the City of Carpinteria

Case Number

26CV01232

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 06/10/2026 - 10:00

Nature of Proceedings

Demurrer

Tentative Ruling

Petitioner Carpinteria Group LLC ["Petitioner"] by Richard Jacobs.

Defendant City of Carpinteria ["City"] by Jena S. Acos, Matthew W. Carlson, Cody T. Sargeant.

Acknowledgements

The Court acknowledges and appreciates the professional work done by counsel in the case.[1] It has been contentious; acrimonious at times.

Issue

City's Demurrer.

RULING

For the reasons set out below:

1. City's Request for Judicial Notice is GRANTED.
2. City's Demurrer is overruled.
3. City shall file its response to the Writ of Mandate on or before June 25, 2026.
4. All issues raised by City in its Demurrer and Petitioner in its Response are rejected without prejudice.
6. The matter is set for a Mandatory Settlement Conference on 8/21/26 at 8:30 am in Department #5 via Zoom.
7. The hearing on the Writ of Mandate is set for 10 am on 9/16/26 at 10 am.

Analysis

This is a demurrer to a combined petition for writ of mandate and complaint asserting claims of violations of state housing laws, including claims specific to a builder's remedy development application and generally seeking to invalidate the City's adopted housing element, and claims under the California Public Records Act.

The Demurrer was filed 4/1/26; 23 pages; summarized:

Demurrer to the First Cause of Action for Writ of Mandate.

The Court lacks jurisdiction over the subject of the First Cause of Action ("CoA") alleged in the Petition, and the Petition fails to plead facts sufficient to constitute the First CoA, (Code Civ. Proc., § 430.10(a), (e)) because Petitioner failed to exhaust its administrative remedies by appealing the City's determination that Petitioner's development application is incomplete to the City's Planning Commission.

Demurrer to the Second Cause of Action Under the Public Records Act.

1. The Petition fails to allege facts sufficient to constitute the Second CoA (Code Civ. Proc., § 430.10(e)) under the California Public Records Act ("CPRA") because the CoA is unripe as it challenges the City's production of records under the CPRA prior to the completion of the City's production.

2. The Petition fails to allege facts sufficient to constitute the Second CoA (Code Civ. Proc., § 430.10(e)) under the CPRA because the City has now produced all responsive, non-exempt records and thus the CoA is moot.

3. The Petition fails to allege facts sufficient to constitute the Second CoA (Code Civ. Proc., § 430.10(e)) under the CPRA because Petitioner's allegation that the City did not respond within 10 days of the CPRA is demonstrably false based on indisputable and judicially noticeable facts.

4. The Petition fails to allege facts sufficient to constitute the Second CoA (Code Civ. Proc., § 430.10(e)) under the CPRA because the CPRA does not provide any judicial remedy for failure to respond or produce documents within a specified deadline.

5. The Second CoA is uncertain, ambiguous, and/or unintelligible (Code Civ. Proc., § 430.10(f)) because it fails to allege any specific facts to show any violation of the CPRA not addressed above.

Demurrer to the Third Cause of Action For Violations of State Housing Law.

1. The Third CoA is uncertain, ambiguous, and/or unintelligible (Code Civ. Proc., § 430.10(f)) because it fails to allege any specific facts to show any violation of the statutes mentioned in the Third CoA.

2. The Court lacks jurisdiction over the subject of the Third CoA alleged in the Petition (Code Civ. Proc., § 430.10(a)) because Petitioner failed to exhaust its administrative remedies by appealing any City action being challenged therein.

Demurrer to the Fourth Cause of Action for Invalidation of Housing Element

1. The Petition fails to allege facts sufficient to constitute the Fourth CoA (Code Civ. Proc., § 430.10(e)) challenging the City's adoption of its Housing Element because it is barred by the 90-day statute of limitations provided in Government Code § 65009(c)(1)(A).

Argument

The Petition for Writ of Mandate and Complaint filed by Petitioner is deficient as a matter of law and must be dismissed. Three times in a row, Petitioner has submitted incomplete development applications for a housing project ("Project") to City. Each time, the City reviewed the application, determined that required information was missing, and issued an "incomplete" notice in compliance with the California Permit Streamlining Act (Gov. Code § 65920 et. seq.) ("PSA"). This lawsuit challenges the City's incompleteness determination as to the Third Development Application ("TDA"). Rather than revise the TDA to address the missing items or pursue an available appeal to the City Planning Commission of the City's incompleteness determination for the TDA ("Incompleteness Determination"), Petitioner has rushed to court on a fatally defective Petition. That alone dooms Petitioner's First Cause of Action ("CoA") challenging the Incompleteness Determination—California law bars litigants from short-circuiting the administrative process by filing a lawsuit before exhausting available administrative remedies.

Petitioner's Second CoA alleging violations of the California Public Records Act (Gov. Code § 7920 et. seq.) ("CPRA") also fails as a matter of law, for multiple reasons. First, Petitioner's claim that the City is somehow "substantively out of compliance" with Petitioners' CPRA requests is both impermissibly vague and unripe, given that the City only completed its document production on March 23, 2026—after the Petition was filed. Petitioner has not alleged the City improperly withheld documents, nor could Petitioner do so before the City's production was complete. Second, to the extent that Petitioner challenges the City's production of documents in tranches, this claim is moot now that the City has completed its document production. Finally, Petitioner's allegation that the City failed to respond within 10 days of the CPRA request is demonstrably false, based on indisputable and judicially noticeable facts, and is not an actionable claim under the CPRA in any event.

Petitioner's Third CoA vaguely alleges "numerous violations" of various state laws, but the

Petition fails to allege even basic facts setting forth what City actions are being challenged or how state law was allegedly violated. California's pleading standards require more, such that the City is on reasonable notice of Petitioner's claims and able to respond to them. Moreover, to the extent the Third CoA is based on the City's incompleteness determination or other City actions that are subject to administrative appeal, the claim is jurisdictionally barred for failure to exhaust those appeals, as described above for the First CoA.

Finally, Petitioner's Fourth CoA challenging the City's adoption of its Housing Element—an action taken by the City over two years ago—is indisputably time-barred under the 90-day limitations period provided by Government Code section 65009(c)(1)(A). *New Commune DTLA LLC v. City of Redondo Beach* (2025) 115 Cal.App.5th 111 ("New Commune"), on which the Fourth CoA solely relies, did not create a new cause of action or revive Petitioner's stale claim.

City requests that the Court sustain the Demurrer as to all causes of action in the Petition, without leave to amend.

City's Contentions

Because the standard for a demurrer requires the Court to accept the Petition's well-pleaded factual allegations as true, the City's discussion below reflects the Petition's allegations, except where the allegations are contradicted by indisputable and judicially noticeable facts, as discussed in the City's Request for Judicial Notice ("RJN") submitted. By reciting the Petition's allegations herein, the City does not admit or imply that the allegations are true, and the City reserves the right to dispute the truth of all the allegations, including but not limited to the dates certain events occurred.

The City Adopted its Housing Element in 2024

Local governments are required to update their housing elements on a periodic basis to ensure compliance with California's Housing Element Law. The City adopted its operative 2023–2031 Housing Element ("Housing Element") on January 22, 2024. On December 9, 2024, the City adopted Ordinance Nos. 788, 789, 790, and 791 ("Implementing Ordinances"), which collectively served to implement Program 1 of the Housing Element. Finally, on January 30, 2025, the State's Department of Housing and Community Development ("HCD") sent a letter to the City stating that the City's Housing Element is in substantial compliance with Housing Element Law.

The City Reviewed Each of Petitioner's

Development Applications and Found Them Incomplete

On December 30, 2024, Petitioner submitted a SB330 Builder's Remedy Preliminary

Application for the Project. At the time, HCD deemed the City's Housing Element to

be out of compliance with State Housing Element Law.

On June 20, 2025, Petitioner submitted its First Development Application ("FDA") for the

Project. The City reviewed the FDA and determined that it was incomplete because it

did not include all required information for the City to evaluate consistency and complete

environmental review. The City notified Petitioner of this determination on July 18, 2025.

On September 30, 2025, Petitioner submitted a revised, Second Development Application

("SDA"). The City reviewed the SDA and found it was incomplete, issuing a letter to

that effect on October 29, 2025.

On November 25, 2025, Petitioner submitted the TDA to the City. The City again reviewed the resubmittal, found it was incomplete, and on December 23, 2025 issued the Incompleteness Determination. As discussed below, the Incompleteness Determination was subject to appeal to the City Planning Commission pursuant to the PSA and the Carpinteria Municipal Code ("CMC"). Petitioner never filed an administrative appeal with the City as to the Incompleteness Determination, the TDA, or any other City action related to the Project.

The City Responded to Petitioner's CRPA Request Within 10 Days

And Produced Documents on a Rolling Basis Until March 23, 2026

On November 24, 2025, Petitioner submitted a CPRA request to the City seeking various

documents, including all current salary information for Bret McNulty, Nicholas Bobroff, Megan Musolf, and Mindy Fogg." The City responded the following day, confirming receipt of the request, stating that City staff would follow up with clarifying questions, and providing current salary information for Bret McNulty, Nicholas Bobroff, Megan Musolf, and Mindy Fogg.

On January 6, 2026, the City provided the first batch of documents in response to Petitioner's CPRA request and noted that the City would continue to disclose records on a rolling basis.

On February 2, 2026, the City provided a second batch of documents in response to Petitioner's CPRA request and advised Petitioner that the City will continue to disclose records on a rolling basis, but that it would complete the disclosure soon.

Petitioner filed its Petition on February 24, 2026, without appealing the Incompleteness Determination and prior to the City completing its CPRA disclosure process. On March 23, 2026, the City sent Petitioner a third batch of documents, stating that these constituted the remainder of disclosable documents responsive to the CPRA request.

The First Cause of Action Fails as a Matter of Law Because

Petitioner Failed to Exhaust Available Administrative Remedies

The First CoA challenges the City's Incompleteness Determination issued on December 23,

2025, claiming that the Incompleteness Determination was legally improper for relying on items that allegedly are not part of the City's submittal requirements checklist. This claim fails as a matter of law because Petitioner failed to exhaust its administrative remedies by appealing the Incompleteness Determination to the City Planning Commission. The rule of exhaustion of administrative remedies is well established in California jurisprudence. In brief, the rule is that where an administrative remedy is provided by statute, relief must be sought from the administrative body and this remedy exhausted before the courts will act. Said another way, where an administrative appeal is available but "no appeal is taken, there is a failure to exhaust administrative remedies, and mandamus will not lie. The rule is not a matter of judicial discretion but is a fundamental rule of procedure binding upon all courts. Exhaustion of administrative remedies is a jurisdictional prerequisite to resort to the courts.

It is axiomatic that, to exhaust administrative remedies, a party must not only commence but complete the administrative process. Thus, if a decision can be appealed to a higher administrative body, a court cannot review the decision unless the litigant has both (1) filed and pursued all available administrative appeals, and (2) presented each issue to be litigated to each administrative body. Further, it is Petitioner's burden to allege facts showing that it exhausted administrative remedies. Petitioner has not, and cannot, plead facts establishing that it has exhausted administrative remedies as to the Incompleteness Determination. The PSA governs the process for the City's review and approval of applications for development projects, including the TDA. (Gov. Code, §§ 65920–65964.5.) Pursuant to the PSA, after receiving an application for a development project, the City must review the application and provide a written determination within 30 days as to whether the submittal is complete. If the City finds the application incomplete and the applicant then resubmits its application, the City has another 30 days to review the resubmitted application for completeness and return a second written completeness determination. If the application is found incomplete a second time, the PSA gives applicants the right to appeal the determination to the City's "governing body," or at the City's option, to the planning commission. The CMC implements this provision of the PSA in Section 14.78.030(1), which provides that any action by the community development director, community development department, or any other agency or individual pursuant to the Title 14 (the Zoning Code) of the CMC shall be final subject to appeal to the planning commission. This section further provides that the appeal and accompanying fee must be filed with the community development department within ten calendar days of the date that the notice of the decision appealed from the authorized individual or agency

was given to the applicant. The issuance of the Incompleteness Determination by the City's community development department is an action under Title 14 of the CMC (see CMC, § 14.68.030), so it is appealable to the City's Planning Commission. The Planning Commission's determination is in turn appealable to the City Council. Thus, if Petitioner wanted to file a legal challenge to the Incompleteness Determination, the exhaustion doctrine required Petitioner to pursue (1) an appeal to the Planning Commission under

CMC § 14.78.030(1), and then if the Planning Commission's decision was adverse to Petitioner, (2) a further appeal to the City Council under CMC § 14.78.040, in order to obtain a final administrative action from the City that could be challenged in court. It is undisputed that Petitioner failed to file any administrative appeal of the Incompleteness Determination—the Petition is silent as to any attempt to exhaust administrative remedies, and the undisputed and judicially noticeable facts show that no appeal was ever filed. Because Petitioner failed to exhaust its available administrative remedies and obtain a final

decision before filing suit, the City's demurrer to the First CoA should be sustained.

Finally, because the 10-day appeal period has lapsed, this infirmity cannot be corrected with an amended pleading.

Petitioners' Second CoA For Violation of the CPRA

Is Unripe, Moot, Fails to State a Claim, and

Is Otherwise Impermissibly Uncertain

The Second CoA is Unripe Because It Was Filed Before the City's Production Was Complete, Thus No Non-Exempt Records Had Been Withheld.

The judicial obligation to resolve controversies brought before the courts does not require adjudication of conjectural or premature matters that are not actual and present controversies. A controversy is not deemed ripe for adjudication unless it arises from a genuine present clash of interests and the operative facts are sufficiently definite to permit a particularistic determination rather than a broad pronouncement rooted in abstractions. The doctrine prevents courts from entangling themselves in abstract disagreements over administrative policies and protects administrative agencies from judicial interference until an administrative decision has been formalized and its effects felt in a concrete way by the challenging parties.

When Petitioner filed this action on February 24, 2026, the City had not yet completed its

record disclosure process, nor had any non-exempt documents been withheld. To the contrary, the City informed Petitioner on February 2, 2026 that documents were being produced "on a rolling basis" and that the final batch would be provided soon. Thus to the extent that Petitioner alleges the City's response to the CRPA request was incomplete, the

claim is unripe because the City had not even completed its response when the Petition was filed. In other words, the City's response had not been formalized and its effects felt in a concrete way by Petitioner. Therefore, the Second CoA is premature and should be dismissed.

Petitioners Second CoA is Moot Because the City Has Produced All Responsive Records

A case may be rendered moot and subject to dismissal if, after the lawsuit is filed, a change

in circumstances renders the relief sought unnecessary or ineffective. Here, as discussed above, Petitioner filed this action on February 24, 2026, before the City had completed its production of documents, which occurred on March 23, 2026. Thus, to the extent that the Second CoA alleges the City's initial production of documents was insufficient or incomplete, the City's completion of its document production renders the claim moot.

Stated differently, there is no other remedy the Court can provide for the Second CoA. The

sole remedy under the CRPA is production of improperly withheld documents. As held in *County of Santa Clara v. Superior Court* (2009) 171 Cal.App.4th 119, 127 ["Santa Clara"]:

The judicial remedy set forth in the CPRA is available only to a person or entity who is seeking disclosure of public records and only where the public entity is allegedly improperly withholding those records. The CPRA provides no judicial remedy for any other person or entity or a remedy that may be utilized for any purpose other than to determine whether a particular record or class of records must be disclosed.

Because the City has now produced all the responsive, non-exempt documents, there is nothing else the Court can order the City to do to comply with the CPRA. The Second CoA is thus moot and should be dismissed.

The Second CoA Otherwise Fails to State a Claim

and is Impermissibly Uncertain

To the extent that Petitioners' Second CoA alleges the City's initial response to the CPRA request is legally noncompliant in a manner not addressed above, no cognizable claim is stated. Petitioner alleges the City refused to comply by providing a response within 10 days. The indisputable and judicially noticeable facts, however, demonstrate that the City provided a response, along with some of the requested information on November 25, 2025 — the day after Petitioner submitted its CPRA Request. Because Petitioner's allegation is directly contradicted by matters subject to judicial notice, the Court need not accept it as true for purposes of ruling on the demurrer.

To the extent that Petitioner alleges the City's November 25, 2025 response—or any of the City's subsequent responses prior to the Petition's filing—were somehow noncompliant, the Petition both fails to state a claim and is impermissibly vague under California's pleading standards. Again, the CPRA only provides remedies where records are wrongfully withheld. The CPRA provides no remedy if a requesting party believes the content of the agency's response is defective, but all non-exempt records are produced, nor does the CPRA require that records be produced by a particular date.

Finally, to the extent that the Second CoA alleges the City is somehow “substantively out

of compliance” as to Petitioner's CPRA request in a manner not covered above, the

claim is too uncertain to survive demurrer. (Code Civ. Proc., § 430.10(f).) The Petition fails to plead even basic facts as to how the City is allegedly not in compliance with the CPRA. The City and the Court are not required to guess at the nature and scope of Petitioners' claim. The facts must be alleged with sufficient clarity to inform defendants of the issues to be met. For all of the reasons stated above, the demurrer should be sustained as to the Second CoA without leave to amend.

The Third CoA Is Impermissibly Uncertain and Unintelligible

Petitioner's Third CoA includes nothing more than general, conclusory allegations such as:

As set forth above and in the previous complaints, there were numerous violations of the Housing Crisis Act, Housing Accountability Act, [PSA] and other state laws that have been corrected by Defendant as a result of this lawsuit. This statement fails to apprise the

City or the Court as to what alleged violations of law occurred when or how, much less how these supposed violations have been corrected by Defendant as a result of this lawsuit. The only intelligible violation of these statutes alleged above relates to the Incompleteness

Determination - if that is what the Third CoA refers to, then it should be dismissed for failure to exhaust administrative remedies, the same as the First CoA. Similarly, if the Third CoA is construed as challenging other determinations by the City under Title 14 of the CMC, those challenges also fail under the exhaustion doctrine. Petitioners have never filed any administrative appeal with the City as to the Incompleteness Determination, the TDA, or any other City action related to the Project. As for “the previous complaints,” the City has no idea what this refers to, and the Petition alleges nothing more to explain what it means. Similarly, Paragraph 91 of the Petition alleges a violation of law based on Defendant's position that Plaintiff does not have vested rights because they are limited to only one revision on their full Planning Application. This, too, is unintelligible. The Petition does not identify what specific City action or determination is challenging, nor when that action or determination allegedly took place. The City is unaware of any occasion where it stated that Petitioner is limited to one revision of its application; to the contrary, the Petition pleads that the City has allowed Petitioner to revise and resubmit its development application twice. Where pleading's specific allegations contradict general allegations, specific allegations control and may render complaint defective on its face.

Statutory causes of action must be pled with particularity.

The particularity requirement means that generally, when a party relies for recovery upon a purely statutory liability it is indispensable that he plead facts demonstrating his right to recover under the statute. Here, by contrast, the City and the Court are left to guess what statutes were violated, when, and how.

Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612 is instructive. In that case, a beauty supply store owner alleged in conclusory fashion that the respondent company had violated the California Unfair Practices Act by refusing to sell products to plaintiff, for the purpose of ruining and interfering with his beauty and supply business, with the effect of misleading plaintiff's customers. The trial court sustained the respondent's demurrer as to this cause of action based on uncertainty. In upholding the trial court's decision, the Court of Appeal held that a plaintiff alleging unfair business practices under these statutes must state with reasonable particularity the facts supporting the statutory elements of the violation. Because the complaint identified no particular section of the statutory scheme which was violated and failed to describe with any reasonable particularity the facts supporting violation, it was subject to demurrer. While the complaint referred generally to an effect of misleading customers, the facts pled clearly did not involve deceptive advertising, did not explain the manner of misleading customers, and did not describe the manner in which respondent's practice was unlawful.

Here, as in *Khoury*, Petitioner fails to plead with any particularity the facts supporting the

elements of a violation—nor does it even identify the particular statutes allegedly being violated. The Petition's internal inconsistency and general ambiguity render it impossible for the City to determine the nature of the violations of which it is being accused by Petitioner. The Court should sustain the City's demurrer because the uncertainty of the Petition is a significant barrier to the City's provision of a meaningful response.

Petitioner's Fourth CoA is Time-Barred

Petitioner's Fourth CoA, which alleges the City's Housing Element is not compliant with

State Housing Element Law is time-barred because it was not filed within 90 days after any City action on the Housing Element, as required by Government Code section 65009.

Section 65009 establishes three limitations periods in which an adopted Housing Element

may be challenged: (1) Section 65009(c)(1)(A) requires that an action to attack, review, set aside, void, or annul the decision of a legislative body to adopt or amend a general or specific plan, including a mandatory element thereof such as a housing element, be filed and served within 90 days of the legislative body's decision; (2) Section 65009(c)(2) additionally allows a challenge to an adopted housing element to be brought within 60 days following the date that the HCD reports its findings pursuant to Section 65585(h) regarding whether an adopted housing element is in conformance with state law; and (3) Section 65009(d) allows a challenge to an adopted housing element after specified notice is provided to the local government. However, that notice must be filed within 270 days after the adoption of a housing element that HCD has found to conform with state law. After the expiration of these time limits, all persons are barred from any further action or proceeding. The courts have specifically recognized the mandatory nature of the time limitations established by Government Code section 65009. Accordingly, the failure to comply with the requirements in Section 65009, even by a single day, results in automatic dismissal for any claim challenging the government action. Here, as noted above, the City adopted its Housing Element on January 22, 2024 and adopted the Implementing Ordinances on December 9, 2024. HCD found the Housing Element compliant on January 30, 2025. Using any of these dates as the trigger for the statute of limitations, under any of the time periods listed in Government Code section 65009, the Petition filed on February 24, 2026 was untimely. This conclusion is not affected by the fact that the Fourth CoA is based on the holding of *New Commune*, supra, 115 Cal.App.5th 111. *New Commune* did not establish a new cause of action or somehow re-start the statute of limitations to challenge a Housing Element; it simply established a new interpretation of an existing statute. (*Howard Jarvis Taxpayers Ass'n v. City of La Habra* (2001) 25 Cal.4th 809, 816 The principle that a change in the substantive case law does not revive stale claims, though sometimes working harsh results, 'encourages people to bring suit to change a rule of law with which they disagree, fostering growth and preventing legal stagnation while a contrary rule would allow virtually unlimited litigation every time precedent

changed.

Here, as with Howard Jarvis, Petitioner was “free to challenge” the Housing Element when it was first adopted on the same grounds alleged in New Commune, and might have obtained a favorable result. Therefore, Petitioner was not entirely forestalled, even as a practical matter, from bringing a timely suit, so there is no reason that Petitioner’s claim against the Housing Element delayed in accrual. Because the Fourth CoA is indisputably time-barred, it must be dismissed without leave to The Petition fails as a matter of law, and the City requests that the Court sustain the demurrer without leave to amend.

City’s Request for Judicial Notice

Filed 4/1/26; summarized: Pursuant to Evidence Code sections 452 and 453, City requests judicial notice of the documents listed below

Exhibit # Description

A City of Carpinteria Resolution No. 6288

B City of Carpinteria Ordinance No. 788

C City of Carpinteria Ordinance No. 789

D City of Carpinteria Ordinance No. 790

E City of Carpinteria Ordinance No. 791

F January 30, 2025 Letter from the Department of Housing and Community

Development to the City of Carpinteria

G November 25, 2025 Email from Mindy Fogg to Carpinteria Group

H January 6, 2026 Email from Mindy Fogg to Carpinteria Group

I February 2, 2026 Email from Mindy Fogg to Carpinteria Group

J March 23, 2026 Email from Brian Barrett to Carpinteria Group

K December 23, 2025 Third Determination of Project Application Incompleteness

* Barrett Declaration paragraph 12. “The City has no record of any

administrative appeal ever being filed with the City by the Carpinteria Group

relating to the Carpinteria Group's proposed project and related applications,

which are the subject of this lawsuit." (Barrett Decl. at ¶ 12.)

Petitioner's Opposition

Filed 5/1/26; summarized: Background. Petitioner Carpinteria Group LLC is developing a mixed low-income/market rate multifamily residential project at 5115 Ogan Road in Carpinteria (the "Project"). At the time Petitioner submitted its SB 330 Builder's Remedy Preliminary Application on December 30, 2024, the City's Housing Element was designated "Out of Compliance" by the California Department of Housing and Community Development ("HCD"). Petitioner submitted its full application on June 20, 2025. The City issued an incompleteness letter on July 18, 2025. Petitioner resubmitted on September 30, 2025. The City again issued an incomplete letter on October 29, 2025. Petitioner submitted a third application on approximately November 25, 2025. The City issued a third incompleteness determination on December 23, 2025 (the "Third Incompleteness Determination").

Each incompleteness determination demanded items that do not appear in the City's own

submittal requirement checklist, including: (1) a Coastal Development Permit; (2) a Local Coastal Plan Amendment; (3) a Tentative Parcel Map; (4) utility plan information beyond what the checklist requires; (5) water and sewer "will-serve" letters (required only for ADU projects under the City's checklist); (6) a Tier 4 Stormwater Management Plan (the project qualifies for Tier 3); and (7) easement information not listed anywhere in the checklist.

On December 23, 2025—the same day the City issued its Third Incompleteness Determination—Petitioner formally invoked the administrative procedure set forth in Government Code Section 65589.5(h)(6)(D) (now renumbered (h)(6)(E)), providing the City with detailed written notice of each specific legal violation and a final opportunity to come into compliance before litigation. (See Exhibit A [the Gmail document submitted herewith].) The City acknowledged receipt and undertook the required posting and noticing procedures but did not come into compliance. Petitioner filed this action on February 24, 2026. The City now demurs to all four causes of action.

A demurrer tests the legal sufficiency of a pleading by raising questions of law. (Blank v.

Kirwan (1985) 39 Cal.3d 311, 318.) The Court must assume the truth of all well-pled facts and give the complaint a reasonable interpretation. A demurrer should be overruled if the petition states any valid cause of action. Leave to amend must be freely granted if there is a reasonable possibility the defect can be cured. The burden of demonstrating that a pleading cannot be amended falls on the demurring party.

ARGUMENT

A. Petitioner Exhausted The Administrative Remedy Specifically Provided By The

Housing Accountability Act And Is Not Required To Appeal To The Planning

Commission.

The City's primary argument—that Petitioner was required to appeal to the City Planning Commission before coming to court—fundamentally misreads the law. The Legislature has created a specialized administrative remedy for housing law violations under the HAA that supersedes the ordinary planning appeal process.

1. Government Code Section 65589.5(h)(6) Provides the Applicable

Administrative Remedy for HAA Violations.

Government Code Section 65589.5(h)(6) establishes a specific procedure for applicants

who believe that a local agency is violating the HAA—including by failing to deem a housing development application complete. Under this provision, a housing applicant may invoke a cure-and-correct procedure by providing written notice to the local agency identifying the specific violations and demanding compliance. (Gov. Code, § 65589.5(h)(6)(D) [now (h)(6)(E)].)

On December 23, 2025, Petitioner sent a detailed, multi-page letter to the City's

Community Development Department invoking Section 65589.5(h)(6)(D) and identifying, item by item, every specific way in which the City's Third Incompleteness Determination violated state housing law. The letter demanded the City confirm it would cease its illegal conduct and deem the application complete. The City acknowledged receipt on January 5, 2026 and undertook the required public posting and noticing procedures. The City did not come into compliance.

By invoking and completing this procedure, Petitioner exhausted the administrative

remedy the Legislature specifically prescribed for HAA violations. No further administrative appeal—including an appeal to the Planning Commission—was required.

2. The HAA's Administrative Remedy Is Not Subject to the Ordinary

Planning Appeal Process.

The City's demurrer relies exclusively on the general administrative exhaustion doctrine

and the City's own Carpinteria Municipal Code Section 14.78.030 for the proposition that

Petitioner was required to appeal the incompleteness determination to the Planning Commission.

But this argument ignores the fundamental principle that a specific statutory remedy controls over a general one. (See *Renee J. v. Superior Court* (2001) 26 Cal.4th 735, 743 [specific statutory provisions control over general provisions].) The HAA is a specific state statute governing the rights of housing applicants. It provides its own mechanism for challenging illegal local agency conduct. A local municipal code provision requiring appeals to a planning commission cannot override or add conditions to the specific administrative procedure the Legislature has prescribed for HAA violations. To hold otherwise would allow local governments to nullify the HAA by simply requiring endless layers of local administrative appeals before a housing applicant may seek judicial relief—precisely the kind of delay the Legislature intended to prevent.

Government Code Section 65589.5(h)(6)(E) (formerly (h)(6)(D)) makes clear that this

procedure exists specifically so that housing applicants can efficiently bring violations to the local agency's attention and move quickly to court if the agency does not comply. (See Gov. Code, § 65589.5(h)(6)(E).) Requiring a parallel appeal to the Planning Commission would be inconsistent with this legislative intent.

3. Even Under General Exhaustion Principles, Petitioner's Invocation of

Section 65589.5(h)(6)(D) Satisfies the Exhaustion Doctrine.

The purpose of the administrative exhaustion doctrine is to give the agency an opportunity

to correct its mistakes before judicial intervention. (*Abelleira v. District Court of Appeal* (1941) 17 Cal.2d 280, 292.) Petitioner's December 23, 2025 letter achieved precisely that. The letter identified each specific legal violation in detail, cited the applicable statutory authority, and gave the City a specific deadline and opportunity to come into compliance. (See Gmail Exhibit.) The City reviewed the letter, acknowledged it, and undertook the public posting process, but did not correct its conduct.

No purpose is served by requiring Petitioner to additionally appeal to the Planning

Commission; a body that has no authority to override the City's legal interpretation of state housing law. Courts have recognized that exhaustion of administrative remedies is not required when it would be futile. (*Ogo Associates v. City of Torrance* (1974) 37 Cal.App.3d 830, 834.) A Planning Commission appeal would be futile here because the incompleteness determinations reflect the City's legal positions on state housing law, not factual planning judgments within the Commission's expertise.

4. Because the Appeal Period Has Not Expired for Purposes of HAA

Claims, There Is No Jurisdictional Bar.

The City argues that because the 10-day appeal period under CMC Section 14.78.030 has lapsed, the First Cause of Action cannot be cured by amendment. But this argument conflates two different administrative processes. The 10-day CMC appeal deadline applies to standard planning appeals under the Zoning Code; it has no application to a Section 65589.5(h)(6) HAA proceeding, which Petitioner timely invoked. There is accordingly no jurisdictional bar, and the First Cause of Action is properly before this Court.

B. The Second Cause Of Action For Violation Of The California Public Records Act

Is Neither Moot Nor Unripe And States A Valid Claim.

1. The City's Belated Production Does Not Moot Petitioner's CPRA Claim Because Petitioner Is Entitled to Attorney's Fees and Costs.

The City argues that because it eventually produced documents, the CPRA cause of action

is moot. This argument is legally incorrect. Under the CPRA, a party who prevails in an action to compel disclosure of public records is entitled to attorney's fees and costs. (Gov. Code, § 7923.115.) This entitlement to fees independently survives the production of records and prevents mootness even when the records are eventually produced.

The California Supreme Court and Courts of Appeal have repeatedly held that a CPRA

plaintiff does not lose their right to fees simply because a public agency capitulates and produces documents after litigation is filed or threatened. (See, e.g., *Belth v. Garamendi* (1991) 232 Cal.App.3d 896, 901 [production after filing does not moot CPRA action for fees].) Here, the City failed to fully respond within the statutory period, forcing Petitioner to retain counsel and take legal action. Petitioner is entitled to recover its fees and costs, and that claim is very much alive.

2. The City's Claim That It Responded Within 10 Days Is Contradicted by

the Record.

The City contends it responded to Petitioner's CPRA request the next day, November 25,

2025. But acknowledging receipt of a CPRA request is not the same as responding to it. The City admittedly did not produce documents until January 6, 2026—more than 40 days after the request. The CPRA requires a substantive determination within 10 days. (Gov. Code, § 7922.530.) An acknowledgment of receipt without a substantive response does not satisfy this requirement. Moreover, the Petition alleges that the City "refused to comply by providing a response within 10 days." (Petition ¶ 86.) At the pleading stage, this allegation must be accepted as true. The City's contrary characterization of the facts—based on exhibits submitted with the Barrett Declaration—raises factual disputes that cannot be resolved on demurrer. The proper vehicle for the City's factual contentions is a motion for summary judgment or trial, not a demurrer.

3. The City Has Not Produced All Responsive Documents and the CPRA

Claim Is Therefore Not Moot on Its Own Terms.

The City's mootness argument rests on the assertion that it has produced "all responsive,

non-exempt records." That is not accurate. The City's own production is demonstrably incomplete in at least the following respects:

First, with respect to Category 1 (invoices from Brownstein Hyatt Farber Schreck), the

City's production omits invoices and application materials related to the concurrently-processed lot split application involving the subject parcel. The lot split application and the Project are legally and factually intertwined—the Petition itself alleges that the City has weaponized delays in the lot split process to frustrate the Project. (Petition ¶ 64(c).) Documents relating to the

City's processing of the lot split are therefore plainly responsive to Category 1.

Second, with respect to Category 2 (internal correspondence regarding the Project), the

production is facially incomplete. It is implausible that a contentious, multi-year Builder's Remedy project—one in which the City retained outside counsel and issued three successive incompleteness determinations—generated only the volume of internal correspondence that has been produced. The City has not represented that its production of internal correspondence is complete.

Third, the City has never made any affirmative representation—in its CPRA responses or

in its demurrer papers—as to whether there are any responsive documents for Categories 3 (timesheets), 4 (all internal correspondence), or 5 (invoices for other development projects since 2020). The CPRA requires an agency to affirmatively identify documents it is withholding and the basis for any claimed exemption. (Gov. Code, § 7922.530(b).) Silence is not compliance. Because the City has not produced all responsive documents and has not accounted for its failure to do so, the CPRA cause of action is not moot. The claim independently survives for attorney's fees and costs in any event.

4. The Petition Adequately Alleges CPRA Violations.

The City contends the CPRA cause of action is impermissibly uncertain. To the contrary,

the Petition specifies the date of the CPRA request (November 24, 2025), the five categories of documents requested, the City's failure to respond within the statutory deadline, and the City's continued failure to produce all responsive documents. (Petition ¶¶ 66-70, 84-88.) This is more than sufficient to apprise the City of the claim and to survive a demurrer for uncertainty.

C. The Third Cause Of Action Is Pled With Sufficient Specificity And Is Not Subject

To The Exhaustion Doctrine.

1. The Petition Adequately Alleges Specific Violations of State Housing Law.

The City calls the Third Cause of Action a "word salad," but this characterization ignores

the 14 pages of detailed factual allegations preceding it. Paragraphs 45 through 65 of the Petition set forth in granular detail the specific actions the City has taken that violate the HAA, HCA, and PSA, including requiring items outside the submittal requirement checklist, imposing excessive fees, and refusing to deem the application complete. These are incorporated by reference into the Third Cause of Action.

Under California's pleading standard, a complaint need only allege ultimate facts sufficient

to apprise the defendant of the claims against it. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) The Petition more than satisfies this standard. The City clearly knows exactly what conduct is being challenged; its demurrer papers demonstrate a thorough understanding of the allegations.

2. The Third Cause of Action Is Not Subject to the Administrative

Exhaustion Doctrine for the Same Reasons as the First Cause of Action.

For the reasons set forth in Section I above, Petitioner exhausted the available administrative remedy under the HAA by invoking Section 65589.5(h)(6)(D). The Third Cause of Action seeks relief for violations of the same state housing statutes and is accordingly not subject to the Planning Commission appeal requirement.

D. The Fourth Cause Of Action Is Not Time-Barred Because The Cause Of Action

Did Not Accrue Until The Court Of Appeal Issued New Commune, And The City's

Housing Element Violations Are Ongoing.

1. The Fourth Cause of Action Did Not Accrue Until New Commune Was

Decided in October 2025.

The City argues that the Fourth Cause of Action is barred by the 90-day limitations period

of Government Code Section 65009(c)(1)(A) because the Housing Element was adopted in

January 2024. The argument proves too much: the specific legal theory underlying the Fourth Cause of Action—that overlay zones permitting non-residential by-right development cannot satisfy RHNA minimum density requirements—was not established as a matter of California law until the Court of Appeal issued *New Commune DTLA LLC v. City of Redondo Beach* (2025) 115 Cal.App.5th 111 on October 10, 2025. Petitioner filed this action on February 24, 2026—137 days after *New Commune* was decided. That is beyond the 90-day window of Section 65009(c)(1)(A) if measured from the date of the decision, and Petitioner candidly acknowledges that the timeliness question presents a genuine legal issue. However, the following arguments support the conclusion that the claim should be heard on the merits.

The accrual of a cause of action is ordinarily tied to the time when a plaintiff discovers, or

reasonably could have discovered, the facts and legal basis giving rise to the claim. (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 397.) Before *New Commune*, no California appellate decision had held that the overlay zone methodology at issue violated the Housing Element Law. Petitioner did not, and could not, have known that the City's Housing Element was legally defective under this theory until the Court of Appeal so ruled. Charging Petitioner with the obligation to bring this claim before the relevant legal standard existed would require prescience that no litigant possesses. While the City will respond that Section 65009's limitations period is absolute (citing *Royalty Carpet Mills, Inc. v. City of Irvine* (2005) 125 Cal.App.4th 1110), that line of authority addressed situations where the legal theory was available at the time of adoption. Here, the question is whether the period can run before the cause of action legally exists. Petitioner

respectfully submits it cannot.

2. New Commune Did Not Merely Clarify Existing Law — It Announced a

New Legal Standard Applicable to Overlay Zone Methodologies.

The City will argue, consistent with *Howard Jarvis Taxpayers Ass'n v. City of La Habra*

(2001) 25 Cal.4th 809, that a change in case law does not restart a limitations period. But *Howard Jarvis* addressed situations where the underlying legal claim had always been available to the plaintiff. The Court specifically noted that the plaintiff was "free to challenge" the government action "when it was first" taken. (25 Cal.4th at p. 817.)

That reasoning does not apply here. To Plaintiff's knowledge, before *New Commune*, no

published California decision had addressed whether methodology used by the City—allowing residential development on parcels that could still be developed for non-residential uses by right—violated Government Code Section 65583.2(h)(2). *New Commune* established this principle for the first time. It was not a clarification of existing, well-understood law; it was a new rule. A plaintiff cannot be penalized for failing to bring a claim premised on a rule of law that had not yet been announced.

3. The City's Housing Element Violations Are Ongoing, Supporting a

Continuing Violation Theory.

In addition to the accrual argument, Petitioner contends that the City's maintenance of a

non-compliant Housing Element constitutes a continuing violation, which independently defeats the statute of limitations argument. The City's Housing Element is not a historical act—it is the operative document governing housing development in Carpinteria today, and its defects have ongoing, daily consequences for applicants like Petitioner. Under the continuing violation doctrine, a new limitations period accrues each day the unlawful conduct persists. (*Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1197-1199.) Because the City continues to apply and enforce its defective Housing Element, the limitations period has not expired.

4. Equitable Tolling Independently Applies.

Even if the Court were to find that Section 65009's limitations period applies and that the

continuing violation doctrine does not, equitable tolling suspends the running of a limitations period where the plaintiff could not reasonably have discovered the basis for the claim earlier. (*Lantzy v. Centex Homes* (2003) 31 Cal.4th 363, 370.) Because the legal theory of the Fourth Cause of Action was unavailable before October 2025, equitable tolling applies and the claim is timely.

5. On the Merits, the City's Housing Element Employs the Same Overlay

Zone Methodology Condemned in *New Commune*.

Although the City's demurrer does not address the merits, the Court should be aware that

the Fourth Cause of Action rests on solid factual ground. The City's Housing Element relies on overlay zones that allow residential development in commercial and industrial zones while still permitting those same parcels to be developed for non-residential uses by right—that is, without any housing component whatsoever. This is materially indistinguishable from the overlay zone methodology that the Court of Appeal in *New Commune* held cannot satisfy the minimum density and residential use requirements of Government Code Section 65583.2(h)(2). (115 Cal.App.5th at pp. 130-131.) If the Fourth Cause of Action is permitted to proceed, Petitioner is confident the evidence will establish that the City's Housing Element is deficient under the same

E. If The Court Sustains Any Portion Of The Demurrer, Petitioner Should Be

Granted Leave To Amend.

Even if the Court were to sustain any portion of the demurrer, Petitioner should be granted

leave to amend. Leave to amend should be freely granted when there is a reasonable possibility that the deficiency can be cured. (*Blank v. Kirwan*, supra, 39 Cal.3d at p. 318.) If the Court sustains the demurrer as to any cause of action, Petitioner can cure any identified pleading deficiencies by adding additional factual allegations. Denial of leave to amend at the pleading stage of a case involving important public interest matters—the provision of affordable housing in California—would be particularly inappropriate.

The City's demurrer should be overruled in its entirety. Petitioner has exhausted the

administrative remedy specifically provided by the HAA, and was not required to separately appeal to the Planning Commission. The CPRA claim states a valid cause of action and is not moot given Petitioner's entitlement to attorney's fees. The Third Cause of Action is pled with sufficient specificity. And the Fourth Cause of Action is timely because *New Commune* created the applicable legal standard fewer than 90 days before the Petition was filed. In the alternative, if the Court sustains any portion of the demurrer, Petitioner respectfully requests leave to amend.

City's Reply

Petitioner's Opposition Brief ("OB") fails to controvert any of the grounds for the City of

Carpinteria's Demurrer ("Dem.").

Under the 1st Cause of Action ("CoA") challenging City staff's decision that Petitioner's

development application is incomplete ("Incompleteness Determination"), Petitioner argues it was not required to exhaust administrative remedies due to Government Code Section 65589.5(h)(6)(E).¹ But Petitioner did not plead a claim under that section, nor could it do so where the administrative process required for such a claim remains incomplete.

For the 2nd CoA under the California Public Records Act ("CPRA"), Petitioner does not

meaningfully dispute that the claim is moot and unripe because Petitioner sued before the City completed its document production, and the City has since done so. Petitioner argues it may be entitled to attorneys' fees, but that is irrelevant to whether the claim is moot. Petitioner otherwise fails to allege what documents are being withheld and why the withholding is wrongful.

Similarly, in response to the Demurrer's showing that the 3 CoA is uncertain, Petitioner

does not and cannot identify where the Petition alleges which laws were violated and how.

Finally, Petitioner effectively concedes its challenge to the City's Housing Element under

the 4th CoA is untimely, and Petitioner's invocation of the "continuing violations" doctrine does not save its claim. For all these reasons, the Demurrer should be sustained without leave to amend.

A. Petitioner Does Not Contest the Facts Showing the 1st CoA is Barred By Failure

to Exhaust Administrative Remedies

1. Petitioner Concedes It Did Not File an Appeal With the City

Petitioner's 1st CoA challenges the Incompleteness Determination. The Demurrer showed

that this claim is barred because Petitioner failed to exhaust administrative remedies by first appealing the Incompleteness Determination to the City Planning Commission and City Council. Petitioner's OB does not contest that (1) the Incompleteness Determination is a "decision" by the City's community development department under Carpinteria Municipal Code ("CMC") section 14.78.030(1), (2) Government Code section 65943(c) requires agencies to provide administrative appeals of incompleteness determinations, (3) Petitioner did not file an appeal of the Incompleteness Determination, and (4) the 10-day period to file an appeal has long since expired. (OB 4–7.) These undisputed facts show the 1st CoA is jurisdictionally barred for failure to exhaust administrative remedies. (Johnson v. City of Loma Linda (2000) 24 Cal.4th 61, 70.)

2. The 1st CoA Does Not Plead a Section 65589.5(h)(6)(E) Claim

Petitioner argues that it was not required to complete the available administrative appeal

process, relying on Government Code section 65589.5(h)(6)(E). That subsection provides a

separate procedure that, once completed, allows an applicant to sue an agency for failing to cease a course of conduct undertaken for an improper purpose that effectively disapproves the proposed housing development without taking final administrative action. The obvious problem with this argument is that Petitioner did not plead a cause of action under section 65589.5(h)(6)(E). The 1 CoA alleges the Incompleteness Determination improperly required items that are not part of the City's submittal requirements checklist and seeks a writ of mandate ordering the City to deem the application complete as of its date of submittal. It does not allege facts showing the Incompleteness Determination was done for an improper purpose or that it effectively disapproves Petitioner's application, as the statute requires. And as discussed further in Section II.A.3. below, the Petition does not allege facts showing the predicate administrative process for an "improper purpose" claim was completed. Petitioner cannot defeat the Demurrer by relying on unpled claims. (Simmons v. Ware (2013) 213 Cal. App. 4th 1035, 1048; [court correctly disregarded plaintiff's new material introduced in opposition to demurrer].)

3. Any Claim Under Section 65589.5(h)(6) Is Unripe

Petitioner's section 65589.5(h)(6)(E) argument also fails because the administrative process

prescribed by that statute has not yet concluded, so any claim thereunder is unripe. The OB argues that Petitioner completed] this procedure, but that is not what the Petition alleges. Rather, as discussed above, the Petition alleges only that Petitioner initiated the administrative procedures, but it omits any allegation that the process was completed. Indeed, the OB admits judicially-noticeable facts showing that the process has not been completed. Section 65589.5(h)(6)(E)(iv) requires that, after receiving Petitioner's written notice, the City has 90 days to either issue a written statement ceasing the challenged conduct or issue written findings articulating why the conduct is necessary. These are predicate conditions before Petitioner may file a legal action under section 65589.5(h)(6)(E). The OB admits Petitioner sent a notice to the City on December 23, 2025, and that the City acknowledged receipt and undertook the required public posting and noticing procedures in compliance with the HAA. Thus, the City had 90 days—until March 23, 2026—to issue one of the written determinations allowed under clause (iv). Petitioner prematurely filed its Petition on February 24, 2026, before that time period elapsed. Thereafter, at Petitioner's request, the Parties filed a Stipulation staying all statutory, non-litigation deadlines relating to the underlying Project that require action either by the Petitioner or the Respondent for a period of 90 days from the date the [Proposed] Order is signed. Per the Court's Order signed on March 18, 2026, the City's deadline was extended to June 21, 2026. Because the City's time to act under the statute has not expired, the predicate conditions for an action under section 65589.5(h)(6)(E) have not been satisfied, and thus any claim under that section is unripe. (See *Abelleira v. District Court of Appeal, Third Dist.* (1941) 17 Cal.2d 280, 295.) Petitioner cannot shortcut the administrative process prescribed by the statutory text.

4. Petitioner Has Not Pled Facts Showing Exhaustion Would Be Futile

Petitioner asserts, without support, that appealing the Incompleteness Determination would be futile because the Planning Commission supposedly has no authority to override the City's legal interpretation of state housing law. This argument fails for multiple reasons. First, the so-called futility exception to the administrative exhaustion doctrine is narrow and applies only if the party invoking it can positively state that the administrative agency has declared what its ruling will be in a particular case. (*Steinhart v. County of Los Angeles* (2010) 47 Cal.4th 1298, 1313.) Petitioner's reliance on *Ogo Associates v. City of Torrance* (1974) 37 Cal.App.3d 830 ("Ogo") is misplaced. In *Ogo*, the petitioner was excused from seeking a zoning variance because the evidence was overwhelming that the zoning ordinance was adopted for the purpose of blocking the petitioner's project. Here, unlike *Ogo*, Petitioner has not even pled any facts to support a conclusion that the Planning Commission had predetermined its position as to the Incompleteness Determination. (*Black v. City of Rancho Palos Verdes* (2018) 26 Cal.App.5th 1077, 1090 [It is specious to contend that it would be futile to exhaust administrative remedies neither having attempted to do so nor having developed a record establishing futility before filing suit].)

Second, Petitioner's assertion that the Planning Commission lacks authority to overturn an

Incompleteness Determination by City staff is nonsensical. Again, Government Code section 65943 requires local agencies to provide an appeal procedure when staff determines an application is incomplete. CMC section 14.78.030(1) provides this formal appeal procedure, through which the Planning Commission is empowered to review and reverse staff-level decisions on factual or legal grounds. Petitioner's argument that City staff have final and unreviewable authority to make legal decisions for the City contradicts the plain text of state law and the CMC; the rules of statutory construction require that these provisions must be given effect. (*Rodriguez v. Superior Court* (1993) 14 Cal.App.4th 1260, 1269 ["Rodriguez"].) Petitioner cannot escape its admitted failure to pursue an administrative appeal of the Incompleteness Determination, and thus the 1st CoA should be dismissed without leave to amend.

B. Petitioner Fails to Overcome the Demurrer to the 2nd CoA

1. Petitioner Does Not Dispute the 2nd CoA is Unripe

The 2nd CoA is predicated in part on the City's alleged failure to timely produce some

(unidentified) documents in response to Petitioner's CPRA request. The Demurrer showed that this claim is unripe because, as judicially noticeable facts demonstrate, the Petition was filed before the City had completed its rolling production of documents in response to the CPRA request. Petitioner's claim that responsive documents were not produced is thus premature and unripe because Petitioner rushed to court before the City's response had been formalized and its effects felt in a concrete way. (*Casa Blanca Beach Estates Owners' Assn. v. Cnty. of Santa Barbara* (2024) 102 Cal.App.5th 1303, 1309.) Petitioner's OB fails to respond to this argument, so the point is waived and the Demurrer should be sustained. (*Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73–74 [“Hood”].)

2. The 2nd CoA is Moot Regardless of Petitioner's Attorney Fees Request

The City's Request for Judicial Notice (“RJN”) asks the Court to take judicial notice of a

document showing that, after the Petition was filed, the City completed its production of documents in response to Petitioner's CPRA request. As the Demurrer discussed, to the extent Petitioner's 2nd CoA is predicated on the non-production of the documents that were eventually produced, the claim is now moot. Petitioner admits the City produced documents after the Petition was filed, but Petitioner argues the claim is not moot because Petitioner alleges it is entitled to attorneys' fees for the CPRA claim. That is a red herring. The Demurrer asserts that the CPRA claim is moot, not Petitioner's request for fees. The CPRA recognizes the catalyst theory for recovering attorneys' fees, whereby even a losing party may still be deemed a prevailing party entitled to an attorney fee award if the party can show that filing the action caused the agency to release a previously-withheld document. (*Sukumar v. City of San Diego* (2017) 14 Cal.App.5th 451, 454.) Thus, in the unlikely event Petitioner can show its premature lawsuit requesting unidentified documents caused the City to produce a document that was previously withheld, Petitioner may file a post judgment motion for attorneys' fees. But Petitioner's belief that it is entitled to post judgment attorneys' fees is irrelevant to whether the claim is moot. Petitioner cites no legal authority to the contrary. Other than Petitioner's request for attorneys' fees, Petitioner does not explain why the 2nd CoA—to the extent it seeks documents the City has produced—is not moot. Because a claim for attorneys' fees cannot breathe life into an otherwise moot claim, the demurrer should be sustained.

3. Petitioner Does Not Dispute the Alleged Procedural Violations of the

CPRA Are Not Actionable and Thus Waives Argument

The Demurrer established that (1) Petitioner's claim that the City failed to respond to the CPRA request within 10 days is false, as shown by judicially noticeable facts; and (2) that claim, and any other based on alleged procedural violations of the CPRA, are not actionable and thus Petitioner fails to state a claim thereon. Petitioner's only argument is that the City's initial November 25, 2025 response to the CPRA request (which included some of the information requested) was somehow not a substantive response, and that the Court should ignore the judicially noticeable facts that contradict the Petition's conclusory allegations. But Petitioner does not dispute that, in ruling on a demurrer, the court will not assume the truth of any contentions or assertions contradicted by judicially noticeable facts. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 20.) Nor does Petitioner oppose the City's RJN or dispute the documents and facts submitted therewith, which show the City did provide a substantive response. More importantly, Petitioner does not dispute that (1) the CPRA does not require production of documents by a particular date, and (2) the CPRA does not provide a remedy for any violation except the improper withholding of a requested record. (*Motorola*, 55 Cal.App.4th at 1344, 1349.) Because Petitioner fails to argue or cite authority to contravene these dispositive points, Petitioner waives the issue. (*Hood*, 43 Cal.App.5th at 73–74.)

4. Petitioner's Briefing Cannot Cure the Petition's Fatal Ambiguity as to

Which Documents Petitioner Alleges Were Improperly Withheld

The Demurrer showed that the 2nd CoA also flunks basic pleading standards because, to the extent it challenges the City's alleged withholding of certain documents, the Petition fails to allege what those documents are or why their withholding is improper. Without such allegations, the 2nd CoA is subject to demurrer for uncertainty because it fails to describe with any

reasonable particularity the facts supporting the violation. (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 619 ["Khoury"].)

Petitioner 's OB responds by attempting to provide the reasonably particular facts missing

from the Petition, arguing the City's production (which Petitioner knew was still in progress when it filed the Petition) remains "incomplete" in some respects. That is improper. Argument in a brief is no substitute for the verified factual allegations the law requires to appear in the pleading. Petitioner does not dispute that, as discussed in the Demurrer, the 2nd CoA is a statutory claim that must be pled with particularity. (Baskin v. Hughes Realty, Inc. (2018) 25 Cal.App.5th 184, 207 ["Baskin"].) Petitioner's argument effectively concedes that the allegations supporting the 2nd CoA are insufficient, and thus the Demurrer should be sustained.

C. Petitioner Does Not Meaningfully Dispute that the 3rd CoA is Uncertain

Petitioner's 3rd CoA for violations of State Housing Laws alleges there were numerous

violations of the Housing Crisis Act, Housing Accountability Act, Permit Streamlining Act, and other state laws. As stated in the Demurrer, the 3rd CoA is subject to demurrer because this vague allegation fails to apprise the City or the Court of what alleged violations of law are at issue, apart from the Incompleteness Determination (also pled in the 1st CoA). The OB does not meaningfully contest that these allegations are insufficient. Petitioner does not dispute that these are statutory causes of action that must be pled with particularity. And Petitioner waives argument by failing to respond to the Demurrer's showing that Paragraph 91 of the Petition (challenging Defendant's position that Plaintiff does not have vested rights because they are limited to only one revision on their Full Planning Application) is contradicted by the Petition's allegation that the City has twice allowed Petitioner to revise and re-submit its application. Petitioner argues that Paragraphs 45 through 65 of the Petition set forth in granular detail the specific actions the City has taken that violate housing laws. Missing is even a single example of this supposed granular detail that does not pertain to the Incompleteness Determination. Petitioner cites (1) requiring items outside the submittal requirement checklist, (2) imposing excessive fees, and (3) refusing to deem the application complete. Items (1) and (3) are the same thing—a claim that the City's Incompleteness Determination was incorrect—and that claim fails because Petitioner did not exhaust administrative remedies, as discussed above in Section II.A.4 Meanwhile, Item (2) illustrates why the 3rd CoA is fatally ambiguous. Nowhere does the Petition allege what specific fees Petitioner believes are excessive or why they are legally improper. The City and the Court are not required to guess what Petitioner means by this vague statement. (Dumm v. Pacific Valves (1956) 146 Cal.App.2d 792, 799.) Petitioner fails to show that the 3rd CoA is barred by both failure to exhaust administrative remedies and impermissible ambiguity in its allegations. The Demurrer should be sustained.

D. Petitioner Cannot Sidestep the Statute of Limitations for the 4th CoA

Petitioner's 4th CoA alleges the City's Housing Element is invalid. The Demurrer showed

this claim is time-barred because it was not filed within 90 days after the City's adoption of the Housing Element, as required by Government Code section 65009(c). Petitioner contends the claim is timely nonetheless, arguing that (1) the statute of limitations did not begin running until the Court of Appeal issued *New Commune DTLA LLC v. City of Redondo Beach* (2025) 115 Cal.App.5th 111 ("New Commune") on October 10, 2025, (2) there is a continuing violation, and (3) the limitations period should be equitably tolled. Each contention fails.

1. Petitioner Concedes the Petition Was Not Filed Within 90 Days of Either

the Housing Element's Adoption Or the Decision in New Commune

Petitioner does not dispute that section 65009(c)(1)'s 90-day limitations period applies to

Petitioner's challenge to the City's Housing Element. By the statute's express terms, the 90-day period begins to run from the date of "the legislative body's decision" to adopt the Housing Element. Petitioner nonetheless argues that its claim accrued on October 10, 2025 when New Commune was released because it was the first published California decision to endorse the 4th CoA's theory. This argument misunderstands both New Commune and statutes of limitation. Contrary to Petitioner's misrepresentation of the holding in *Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 397, the well-established rule is that the plaintiff discovers the cause of action when he at least suspects a factual basis, as opposed to a legal theory, for its elements. Thus, it is irrelevant that no published decision had explicitly endorsed Petitioner's theory before New Commune. All that matters is whether Petitioner understood the factual basis for the claim—here, the content of the City's Housing Element. The 4th CoA's legal theory has been available to Petitioner since the Housing Element was adopted on January 22, 2024.⁶ Petitioner's unsupported argument that a claim does not accrue until a published decision endorses that claim's precise theory would eliminate the statute of limitations from all but a handful of cases. Contrary to Petitioner's contention that New Commune was not a clarification of existing, well-understood law; it was a new rule, the New Commune opinion makes clear that it was merely applying the language of Government Code section 65583.2 as interpreted by *Martinez v. City of Clovis* (2023) 90 Cal.App.5th 193. New Commune thus applied existing law to the facts before it; it did not announce some brand-new legal principle cut from whole cloth, as Petitioner suggests. Moreover, even if Petitioner were correct that the claim accrued when New Commune was published, Petitioner concedes that the Petition was filed more than 90 days after that date. Thus, the 4th CoA is time-barred under Petitioner's own theory and admissions. Seemingly aware that its claim is doomed, Petitioner improperly attempts to argue the merits of its claim in opposing the Demurrer's statute of limitations argument. It is fundamental that the merits of a claim are completely irrelevant to whether the claim is time-barred. (*Lackner v. LaCroix* (1979) 25 Cal.3d 747, 752 [A bar raised by the statute of limitations does not reflect on the merits of the action.]) Even Petitioner acknowledges that the merits are not at issue in the City's Demurrer.

2. An Alleged Defect in a Housing Element is Not a "Continuing

Violation;" A Contrary Rule Would Render Section 65009(c) Ineffective

Petitioner claims that "the City's maintenance of a non-compliant Housing Element constitutes a continuing violation" such that the limitations period never runs out.

Nonsense. The adoption of a Housing Element is a discrete legislative act and the limitations period to challenge its contents runs from the date of approval, not from its continued existence. (Gov. Code, § 65009(c); *Hensler v. City of Glendale* (1994) 8 Cal.4th 1, [If the challenge is to the facial validity of a land-use regulation, the statute of limitations runs from the date the statute becomes effective].) To hold otherwise would render the limitations period of section 65009(c) ineffective, in violation of the rules of statutory construction. (*Rodriguez*, 14 Cal.App.4th at 1269.) Unsurprisingly, Petitioner cites no legal authority to support its continuous accrual theory. The only case Petitioner cites, *Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1197–1199, was a challenge under the California Unfair Competition Law to an ongoing practice of charging allegedly excessive copying fees—that has nothing to do with challenging a City's legislative enactment of its Housing Element.

3. There is No Factual or Legal Support For Equitable Tolling Here

Finally, Petitioner argues that its claim should be equitably tolled because it supposedly

could not reasonably have discovered the basis for the claim earlier. This boils down to the same argument refuted in Section II.D.1. above. A change or clarification in case law does not delay accrual or justify tolling where the underlying facts—and the statutory basis for the claim—were available all along. (*Howard Jarvis Taxpayers Assn. v. City of La Habra* (2001) 25 Cal.4th 809, 816.) Petitioner had every opportunity to assert this theory within the statutory period, and Petitioner's failure to do so is not a basis for equitable tolling. Moreover, as Petitioner admits, even if the statutory period were equitably tolled until New Commune was decided on October 10, 2025, the Petition would still be untimely. For the foregoing reasons, the Petition fails as a matter of law, and the City requests that the Court sustain the Demurrer without leave to amend.

The Court's Analysis and Conclusions

The court's only task in ruling on a demurrer is to determine whether the complaint states a cause of action. *Moore v. Regents of University of California*, 51 Cal.3d 120, 125 (1990). The court assumes the truth of allegations in the cross-complaint that have been properly pleaded and give it a reasonable interpretation by reading it as a whole and with all its parts in their context. *Stop Youth Addiction, Inc. v. Lucky Stores, Inc.*, 17 Cal.4th 553, 558 (1998). The court assumes the truth of the reasonable inferences that may be drawn from the properly pleaded material facts. *Reynolds v. Bement*, 36 Cal.4th 1075, 1083 (2005). However, the assumption of truth does not apply to contentions, deductions, or conclusions of law and fact. *People ex rel. Lungren v. Superior Court*, 14 Cal.4th 294, 300–301 (1996).

If the Court were to sustain the City's demurrer, it would be doing indirectly what it will not do directly. It would suggest that the Court wants to avoid the merits of this action. The Court will not give that signal.

The Court should address the substantive violations of the Housing Accountability Act, the Housing Crisis Act, and the Permit Streamlining Act rather than deciding this case upon arguments of administrative exhaustion, mootness, and an expired statute of limitations.

The administrative exhaustion doctrine arguably does not apply here because Petitioner

exhausted the administrative process specifically made available under the HAA by invoking Government Code Section 65589.5(h)(6)(D) [renumbered as Section 65589.5(h)(6)(E)] that is a specialized remedy that supersedes and supplants ordinary administrative appeal procedures for housing law violations of this type. The Legislature created this specific mechanism precisely for situations like this one. The Public Records Act cause of action is arguably neither moot nor unripe. Petitioner's claim for attorney's fees and costs related to the City's initial refusal to comply with the CPRA independently survives, and the claim is not mooted by belated partial production. The case is pled with adequate specificity. The Petition details the specific City actions that allegedly violate specific statutory provisions. The Court has read and considered the 14 pages of detailed factual allegations that precede the causes of action. The case appears not to be time-barred. It now appears that a new cause of action accrued when the California Court of Appeal issued its decision in *New Commune DTLA LLC v. City of Redondo Beach* (2025) 115 Cal.App.5th 111, which may have established for the first time that the overlay zone methodology used by the City to satisfy its Regional Housing Needs Allocation is legally deficient. The Court wants the issue to be briefed and argued again when the Court considers the case on its merits. Arguably, Petitioner could not have brought this claim before that legal standard was established.

This case has substantial consequences and significant public interest. The City adopted its operative 2023–2031 Housing Element on January 22, 2024. On December 9, 2024, the City adopted Ordinance Nos. 788, 789, 790, and 791, which collectively served to implement Program 1 of the Housing Element. Petitioners claim that the City is attempting to block a project that would add affordable housing in Carpinteria needs to be considered and addressed on all its merits. The Court has read everything and there is some merit to the Demurrer, but the Court finds it insufficient to justify a ruling that the Court should sustain it. At the same time the City may raise any issue in its Response to the Writ that has been presented today without prejudice. Time is of the essence, and the Court will set a prompt date to decide the Writ of Mandate on its merits.

[1] The Court apologizes for any grammatical and typographical errors in this decision.

Judges

Judge Thomas Anderle

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